

The Claremont City Council held a meeting on Wednesday, October 25, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Allen Damren
At-Large Councilor Abigail Kier
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Absent:

Mayor Charlene Lovett
At-Large Councilor Bruce Temple

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mr. Damren said to remove Ordinance 557 Naming City-owned Property, as it is not ready, and to place it on the next meeting's agenda. Also, remove Amend Council Rules as it is not ready.

Mr. McNutt said Fall Clean-Up also needs to be removed. He is working with Public Works Director Scott Sweet on that.

MAYOR'S NOTES

Mr. Damren read the notes:

- The Chamber has scheduled interviews with Council candidates and the interviews will air 10/30-11/7 on CCTV (Claremont Community Television). He reminded people to vote on November 7th.
- Removal of lead initiative. Six people from Claremont will attend the Healthy Homes Conference.
- House Finance Committee will vote on a lead bill on November 8th. He asked citizens to contact their State Representatives to urge them to support the bill.
- Council expressed its heartfelt condolences to the family of Kurt Beek who recently passed away.

- October 27 is the last day to register to vote in the City Clerk's office.

CITIZEN'S FORUM

No one spoke.

OLD BUSINESS

Ordinance 557 Naming City-owned Property – First Reading

Withdrawn.

Ordinance 556 Open Burning – Second Reading – Public Hearing

The purpose of this proposed change is to establish procedures and a permitting system to the Claremont City Code regarding outside fires, other than those related to gas or charcoal grills, heating devices or uses related to construction or maintenance activities.

Enactment of this Ordinance will revise Chapter 6, Fire Codes & Enforcement by adding provisions to establish procedures and a permitting system to regulate open burning within the City limits.

Fire Chief Rick Bergeron asked if Council had questions. Mr. Damren asked for an explanation of the correction in the ordinance. Chief Bergeron said this ordinance includes the website link to NH Forest & Lands for daily fire danger day. The City webpage will be updated to match the language in the ordinance.

A motion was made by Mr. Raymond and seconded by Ms. Kier to adopt Ordinance 556 Open Burning.

Mr. Raymond read the explanation of proposed action into the record.

Mr. Damren opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 7-0.

Overview of How Properties are Assessed

Steve Hamilton, Director of the Municipal and Property Division of the Department of Revenue Administration (DRA) introduced Sam Greene, Supervisor of the Western District, and Diane Frechette, Monitor assigned to Claremont to help keep track of Claremont's progress in assessing the City. Mr. Hamilton said that every New Hampshire municipality has the duty to appraise properties for taxation. Property tax is a tax on the value of property. The duty of every community is to assess the value of that property. Many properties qualify for exemptions:

religious, charitable, elderly or disability. There are tax credits for veterans. There is a new optional veterans credit, which is a local option, that can be voted on by the City. Property tax assessments need to be made in a manner that is proportional. Properties need to be reappraised at least every 5 years. DRA monitors every reappraisal in the state. The monitor makes sure the work is done according to standards and also makes sure work is done according to the contract. Additionally, there is assessment reporting every 5 years. The DRA has timber appraisers available for all communities. There is a timber tax. DRA also has a gravel appraiser. Regarding equalization, communities are adjusted to bring all communities to a market value standard and that is used for the county tax burden.

Mr. Hamilton said the other part of DRA is the municipal finance side and they set the rates of taxation.

Mr. Pope asked about appraisal versus assessment. Mr. Hamilton said there are a lot of complexities to the answer. Mass appraisal technique will predict value. Average deviation is plus or minus 20%.

Mr. Hamilton said every taxpayer has the right to challenge their assessment and to request an abatement. There is no cost at the local level. At the state level, there is a modest filing fee of \$65.

There was a discussion regarding the five-year reassessment. Mr. McNutt clarified that DRA comes in and selects a sampling of properties to look at. Mr. Hamilton said valuations can be done earlier. If there are large changes in value, it would be prudent to do it more often.

Ms. Towle said the presentation that was done a couple of years ago was wonderful. Mr. Hamilton said DRA will be happy to come and make a presentation again.

Mr. Hamilton said the due date for the next five-year assessment is 2019.

Mr. McNutt said for FY19 he will plan to propose to bring valuations up to 24 months instead of 5 years. There are opportunities to capture value in 24-month cycles.

Mr. Hamilton suggested establishing a capital reserve to help mitigate costs.

Joe Osgood, Ward 2, asked about depreciation, such as when an old house gets renovated except for one side of the outside wall, and how does that stay at the old assessment. He asked for an overview of Current Use and the City's authority for Current Use.

Mr. Hamilton said depreciation is something that is observed on individual properties. It is based on relative age. Depreciation estimate should not focus on just one element.

Mr. Hamilton said for Current Use, all property is assessed at its highest/best use. Land conservation program = Current Use program is highly successful for limiting the development of NH without preventing it. If the Current Use land is developed, it will be assessed 10%.

About 52% of the entire state is enrolled in Current Use. Current Use Board establishes land valuation. Current Use valuation cannot include the value of standing timber. Once placed in Current Use, it is perpetual. There are disqualifying events.

Mr. Damren said 70% of Claremont is in Current Use. Mr. Hamilton said that is not unusual. There are a lot of small towns with forest land enrolled in the Current Use program. Current Use is for protecting land to be undeveloped. Undeveloped land is very light on services.

Ms. Kier asked how often Current Use properties are reviewed. Mr. Hamilton said it is the City's duty to do it annually.

Mr. McNutt said Marlene Jordan, Assessor, is in the process of reviewing the Current Use properties now. It is done by looking at aerial photography, noting changes and then going to the properties. Ms. Towle asked for a sampling of Current Use for the get together on November 13th.

Fall Clean-Up

Mr. McNutt said the Fall Leaf Clean-Up will be Monday, October 30-Friday, November 3. The County will provide inmates to help. After November 3rd, citizens can take leaves to the Transfer Station.

Mr. McNutt said that Public Works has requested that all items in the cemeteries be removed no later than November 1. Small items that do not interfere with maintenance will not be removed by Public Works personnel.

NEW BUSINESS

Master Plan Energy Chapter-Municipal Energy Committee Discussion

Nancy Merrill, Planning and Development Director, said this is the first energy chapter in the Master Plan. There was an energy subcommittee working on this chapter. The draft was approved by the steering committee and the Planning Board. The Council will get the full Master Plan in about eight weeks. This chapter recommends having an energy committee.

Mike McCrory, Planner, said in this chapter there are goals and objectives that go beyond energy such as overall environmental questions. That's not uncommon for energy committees to look into.

Mr. McNutt asked if the State of NH has a green committee program to support a local committee. Mr. McCrory said there is a mix of support, but in terms of funding, we are on our own. In terms of technical assistance, we are benefitting from EPA Region 1. They are helping us establish a data base. He said Tim Hernon is doing a lot to get this data base populated.

Mr. McCrory talked about energy committee versus energy commission. Of the groups that are active, most are energy committees. At the Regional Planning Commission, he worked with energy committees. Energy commissions have bank accounts and the ability to spend funds. There has been a lot of capital improvements done by staff. What an energy committee can do is help focus priorities. It is the Council's decision which to go with. It is more administrative work with a commission.

Ms. Merrill asked if the Council was interested in creating a committee or commission.

There was a discussion about committee versus commission. Because of the number of current boards and commissions vacancies, Mr. McNutt suggested this be made up of five people with alternates. It was also discussed about whether or not to include people from certain areas (i.e. small business, large business, schools, industry).

Ms. Merrill will come back to Council with version of committee and a version of commission.

Mr. McCrory said functionally communities have preferred committees (advisory). Consensus of most of the Council was for a committee. Mr. Damren said he would like to see information for both.

Rebecca Mackenzie, Ward 2, thanked the Council for seeing the value of this committee. She asked if a committee could seek grants.

Mr. McCrory said with grants there is no loss of opportunity with a committee or a commission. There would be staff support either way.

Ms. Mackenzie said she hoped the people on the Energy Chapter would have input on the make-up of the committee. Also, she said she is a part of a group, the Action Collaborative for Transition to Sustainability Now. They were awarded a \$1,500 grant from the New England Grass Roots Environment Fund to help educate residents/community members and to work with City officials to help increase solar energy in our community. She thanked the City for moving forward with solar at the Wastewater Treatment Plant.

Mr. Damren asked to bring this back at the end of November.

56 Opera House Square Environmental Update

Ms. Merrill gave an update on 56 Opera House Square. She said this building is owned by the City. It has gone through a phase 1 environmental study and a hazardous building material study has been done. There is a very large oil tank that was filled about 30 years ago. Asbestos, oil, and tank removal will cost about \$40,000. She has identified a partner that has some brownfield sub-grant money for remediation. They have \$40,000 left. She would need a consensus of the Council to go forward with this.

A motion was made by Mr. Koloski and seconded by Mr. Raymond to allow the City to apply for \$40,000 in remediation funding from whatever source may be available for remediation at 56 Opera House Square.

Voice vote: motion carried 7-0.

Approval of Multi-Year Lease for the Claremont District Court

Mary Walter, Finance Director, said the District Court lease expires this year. If there were a consolidation, it would put the Court in Newport. It would add expense due to extended Police time and would increase the time for students to be out of school. This is a five-year lease with 1% increases in years 1, 3 and 5. The hope is to get this on the Governor and Council agenda in December.

A motion was made by Mr. Koloski and seconded by Ms. Towle to authorize the City Manager to enter into a five-year lease agreement, beginning January 1, 2018, with the State of New Hampshire, at a monthly rent of \$4,618.00 for the first year of the lease, for certain premises within the City Hall complex to be occupied by the Claremont Circuit Court.

Mr. Damren said Council got this late. One anticipated change to the Council Rules is that anything not received in the Council packet will not be considered. 

Voice vote: motion carried 7-0.

Amend Council Rules

Withdrawn.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope said the Policy Committee has sent the naming ordinance and fund balance policy to the Mayor. Next, they will work on the lead policy.

There was a discussion about scheduling a non-meeting for consultation with legal counsel. It was agreed to meet November 1st, 6:30 p.m., in Council Chambers.

Mr. Damren said the regular meetings for November are on the 8th and 22nd, which is the Wednesday before Thanksgiving. It was the consensus of the Council to change the 22nd meeting to Tuesday, November 21, 6:30 p.m.

Mr. Damren asked Councilors to think about the dates and times for the December meetings and have those suggestions ready for the November 8th meeting.

Mary Walter, Finance Director, said there has to be a meeting to Canvass the Vote [to be held the Thursday after the election].

Ms. Towle said any resident who does not have ride to the polls to contact her and she will schedule a ride.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:21 p.m., a motion was made by Mr. Pope and seconded by Mr. Simonds to adjourn.

Voice vote: motion carried 7-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council